

24STCV23773 24STCV23773

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-14

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Case Number: 24STCV23773 Hearing Date: July 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/14/2026

CASE NUMBER: 24STCV23773

CASE NAME: CHRISTOPHER STONE vs

CITY OF LOS ANGELES, A CALI...

MOVING PARTY: Defendant Citiguard, Inc.

OPPOSING PARTY: Plaintiff Christopher Stone

PROCEEDING: Demurrer w/ Motion to Strike

RULING SUMMARY: Defendant Citiguard,

Inc.'s Demurrer is sustained Defendant Citiguard,

Inc.'s Motion to Strike is moot, or granted if Plaintiff contends that that

failure to comply with the prior ruling and order as to leave to amend is not a

proper basis on which the sustain the demurrer, the Court grants the Motion to

Strike on that aground.

Plaintiff Christopher

Stone is to file a pleading that adheres with the Court's Order within _____

days. This ruling does not preclude Plaintiff from bringing a motion for leave

to file an amended pleading.

Background

On September 16, 2024, Plaintiff Christopher Stone ("Plaintiff") filed a Complaint against defendants (1) City of Los Angeles ("Los Angeles"); (2) County of Los Angeles ("COLA"); (3) Balubhai G. Patel, an individual and trustee of the Balubhai G. Patel Revokable Trust ("Patel"); (4) Pravin Ahir ("Ahir"); (5) People Assisting the Homeless ("PATH"); (6) University of Southern California ("USC"); (7) Citiguard, Inc. ("Citiguard"); (8) Los Conejos Properties, LLC ("Los Conejos"); (9) Nicolas Orellana; (10) Gladys Orellana (collectively w/ Nicolas Orellana, the "Orellanas"); (11) Socios Cambria, LP ("Socios"); and (12) Solari Enterprises, Inc. ("Solari" and, with other defendants, "Defendants").

On April 2, 2025, Socios filed a Cross-Complaint against Defendants Roes 1 through 25, inclusive, alleging three causes of action for: (1) Equitable/Implied Indemnity; (2) Apportionment and Contribution; and (3) Declaratory Relief.

On June 3, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendants and subsequently dismissed COLA and USC.

On June 17, 2025, Plaintiff filed a Motion for Preliminary Injunction, which was denied.

The Second Amended Complaint ("SAC"), filed on March 06, 2026, alleges seven causes of action for: (1) Public Nuisance (Civ. Code §§ 3479, 3480) Failure to Preserve Right of Public Way against Los Angeles; (2) Public Nuisance (Civ. Code §§ 3479, 3480) Sidewalk Conditions against Patel, Ahir, Los Conejos, Nicolas, the Orellanas, and Solari; (3) Public Nuisance (Civ. Code §§ 3479, 3480) Encampment Transfers against Los Angeles, PATH, Citiguard, Ahir, and Patel; (4) Public Nuisance (Civ. Code §§ 3479, 3480) Facilitation of Public Drug Markets against Los Angeles, PATH, and Citiguard; (5) Private Nuisance (Civ. Code §§ 3479, 3480, and 3481) Smoke Intrusion against Los Angeles, PATH, and Citiguard; (6) Private Nuisance (Civ. Code §§ 3479, 3480, and 3481) Noise Intrusion against Los Angeles, PATH, and Citiguard; and (7) Private Nuisance (Civ. Code §§ 3479, 3480, and 3481) Light Intrusion against Socios and Solari.

Plaintiff alleges that since August 3, 2016 he has been the lawful tenant of 729 South Union Avenue in the City of Los Angeles,

which is situated directly across the street from Stuart Hotel, now leased to Los Angeles by Ahir, and that Los Angeles buses transients to the Stuart Hotel for its program Inside Safe, leading to the deterioration of the neighborhood. Plaintiff contends that: (1) Ahir is the manager of Stuart Hotel; (2) Los Conejos owns the parking lot next to Stuart Hotel; (3) the Orellanas own Los Conejos; (4) PATH manages the day to day operations inside Stuart Hotel; (5) Citiguard provides security services for Inside Safe; (6) Socios owns a residential apartment building situated directly across Cambria Street from the Stuart Hotel with street address 738 South Union Avenue; and (7) Solari responded to Plaintiff's letter on behalf of Socios and Plaintiff believes that Solari is Socios' property manager.

On April 6, 2026, Citiguard filed this Demurrer with Motion to Strike. On June 30, 2026, Plaintiff filed his Oppositions. On July 7, 2026, Citiguard filed its Replies.

Answers to the SAC were filed by the other defendants as follows: April 7, 2026, Patel and Ahir; April 14, 2026, PATH; April 17, 2026, Socios and Solari; April 20, 2026, Los Angeles.

Meet and confer

Before filing a demurrer or motion to strike, the moving party is required to meet and confer with the party who filed the pleading demurred to, in person or telephonically, to determine whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. §§ 430.41, 435.5.)

The meet and confer requirement has been met. (See Demurrer and Motion to Strike at Decl. Daniel R. Berke at ¶¶ 4-5.)

LEGAL STANDARD

A.

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ.

Proc. § 430.30(a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded.

(Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

B.

Motion to Strike

Any

party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436(a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

C.

Leave to Amend

“Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) “A trial court does not abuse its discretion when it sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim.” (Cantu v.

Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 889.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

DISCUSSION

A.

Demurrer

1. Plaintiff's

SAC contains new causes of action that exceed the Court's previous ruling.

Citiguard notes that the Court has previously ruled upon the FAC, allowing only the fourth claim for "Public Nuisance. . . Facilitation of Public Drug Markets" and argues that Plaintiff has attempted to bypass the Court's ruling to add new causes of action, (1) the Third Claim for Relief (Public Nuisance – Civ. Code §§ 3479, 3480 – Encampment Transfers); (2) Fifth Claim for Relief (Private Nuisance – Civ. Code §§ 3479, 3480 & 3481 – Smoke Intrusion); and (3) Sixth Claim for Relief (Private Nuisance – Civ. Code §§ 3479, 3480 & 3481 – Noise Intrusion).

Plaintiff argues that he has followed the Court's prior ruling as the SAC narrows the case and the Fifth and Sixth claims for private nuisance incorporate previously alleged nuisance conduct into more focused claims. Plaintiff contends that Citiguard's argument elevates form over substance.

In Reply, Citiguard reiterates that Plaintiff has violated the Court's previous ruling.

While Plaintiff contends that he has voluntarily dismissed multiple defendants, including COLA and USC, and abandoned all claims for damages, these items are not at issue for this Demurrer.

The Court's prior ruling was as follows:

The demurrer to the 4th cause of action is overruled; the demurrer to the 7th, 9th, and 12th

causes of action is sustained with leave to amend. Plaintiff is granted 30 days leave to amend. The Court sets the OSC re: Amended Complaint for March 6, 2026, at 8:30 a.m.

(02/06/2026 Ruling.)

Leave to amend was granted as to the following causes of action in the FAC: (1) Seventh Cause of Action (Negligence — Public Function & Affirmative Undertaking - Against PATH & Citiguard); (2) Ninth Cause of Action (Private Nuisance (Civ. Code §§ 3479, 3480 & 3481) — Repeated Vandalism - Against All Defendants Except Socios Cambria and Solari Enterprises); (3) Twelfth Cause of Action (Declaratory Relief — Patrol of Socios Cambria (Code Civ. Proc. §1060) - As to The City, Citiguard, Socios Cambria and Solari Enterprises).

Case law distinguishes two types of leave to amend: (1) a situation where the pleader of his own accord seeks leave to amend his pleading and (2) the amendment of a pleading to which a demurrer has been sustained with leave to amend. (People ex rel. Dept. Pub. Wks. v. Clausen (1967) 248 Cal.App.2d 770, 785.) Where a pleader of his own accord seeks leave to amend, the pleader is given a broad grant to amend and is free to add new parties and claims. (Id. [citing Louvall v. Gridley (1886) 70 Cal. 507 and W. H. Marston Co. v. Kochritz (1926) 80 Cal.App.352 in which new parties were added]; Barr v. Carrol (1954) 128 Cal.App.2d 23, 26-27 [when leave to amend is granted, plaintiff is not precluded from pleading “inconsistent causes of action . . . in as many ways as plaintiff believes his evidence will support, and plaintiff may recover if one well pleaded count is supported by the evidence [Citations]” so long as the new pleading does not “give rise to ‘a wholly distinct and different legal obligation against the defendant’ [Citations.]”].)

By contrast, where leave to amend has been given via sustained demurrer, it is narrow as the “leave to amend is not a sanctioning of a particular amendment which the pleader has submitted to the trial court.” (Id.) Such a “leave to amend must be construed as permission to the pleader to amend the cause of action which he pleaded in the pleading to which the demurrer has been sustained.” (Id. at 785-786. See also Patrick v. Alacer Corp. (2008)167 Cal.App.4th 995, 1015 [leave to amend can include a new cause of action only where it “directly responds to the court's reason for sustaining the earlier demurrer”].) Thus, “[f]ollowing an

order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend. [Citations.]” (Harris v. Wachovia Mortgage, FSB (2010), 185 Cal.App.4th 1018, 1023.)

Plaintiff concedes that he changed the SAC. (See Opp. 10-17.) The issue before this Court is whether Plaintiff's changes introduce new operative facts (i.e., substance) that exceed the narrow leave to amend previously granted by the Court.

Regarding the claim for Relief (Public Nuisance – Civ. Code §§ 3479, 3480 – Encampment Transfers), this claim was found in the FAC as the Third Cause of Action and in the SAC as the Third Cause of Action. (See FAC at ¶¶ 124-133; compare with SAC at ¶¶ 102-111.) Previously, this claim was against Los Angeles, COLA, PATH, and USC. (See FAC at 47:6-9.) It is now directed at Los Angeles, PATH, Citiguard, Ahir, and Patel. Such a change exceeds the scope of the Court's order granting leave to amend as the claim for Public Nuisance – Civ. Code §§ 3479, 3480 – Encampment Transfers was not at issue in the previous demurrer.

Private Nuisance – Civ. Code §§ 3479, 3480 & 3481 – Smoke Intrusion was not a previous cause of action. (See FAC [generally].) Rather, smoke was mentioned as follows:

“Occasionally the Inside Safe participants’ bonfires grow out of control, generating large plumes of smoke that intrudes into Plaintiff's residence. On March 5, 2024, Plaintiff observed and started to record a fire started by Inside Safe participants on the sidewalk abutting the Stuart Hotel, but it quickly exploded into such a conflagration that Plaintiff interrupted the recording to call 911.” (FAC at ¶ 81 [fn. omitted].)

“The squalid and dangerous sidewalk conditions have denied Plaintiff the free passage or use, in the customary manner, of the sidewalk around his residence and his right to quiet enjoyment of his tenancy. The same conditions are also injurious to the health or offensive to the senses, and particularly injurious to Plaintiff's health or offensive to

Plaintiff's senses: Seeing groups of individuals hunched over like a zombie horde on the sidewalk is offensive; hearing emergency sirens late at night is injurious to health when it disturbs one's sleep; inhaling smoke from out-of-control fires is injurious to health." (FAC at ¶ 108 [inside First Cause of Action (Public Nuisance – Civ. Code §§ 3479, 3480 – Failure To Preserve Public Right-of-Way against Los Angeles)].)

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"The activities and conditions at and around the Stuart hotel as herein alleged constitute a public nuisance within the meaning of Civil Code sections 3479 and 3480 because they include the use and sale of narcotics on the sidewalk, bonfires fires on the sidewalk and obstruction of the sidewalk by groups of intoxicated Inside Safe participants. These activities and conditions constitute an obstruction to the free passage or use, in the customary manner, of the sidewalk. These activities and conditions harm Plaintiff's entire neighborhood or community, and Plaintiff's comfortable enjoyment of his tenancy in particular because they take place immediately in front and in full view of his residence. The squalid and dangerous sidewalk conditions have denied Plaintiff the free passage or use, in the customary manner, of the sidewalk around his residence and his right to quiet enjoyment of his tenancy. The same conditions are also injurious to the health or offensive to the senses, and particularly injurious to Plaintiff's health or offensive to Plaintiff's senses: Seeing groups of individuals hunched over like a zombie horde on the sidewalk is offensive; hearing emergency sirens late at night is injurious to health when it disturbs one's sleep; inhaling smoke from out-of-control fires is injurious to health." (FAC at ¶ 117 [inside Second Cause of Action (Public Nuisance – Civ. Code § 3479, 3480 – Sidewalk Conditions against Patel, Ahir, Los Conejos, the Orellanas, Socios, and Solari)].)

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"These activities and conditions harm Plaintiff's entire neighborhood or community, and Plaintiff's comfortable enjoyment of his tenancy in particular because they take place immediately in front and in full view of his residence. The squalid and dangerous sidewalk conditions have denied Plaintiff the free passage or use, in the customary manner, of the sidewalk around his residence and his right to quiet enjoyment of his tenancy. The same conditions are also injurious to the health or offensive to the senses, and particularly injurious to Plaintiff's health or offensive to Plaintiff's senses: Seeing groups of individuals hunched over like a zombie horde on the sidewalk is offensive; hearing emergency sirens late at

night is injurious to health when it disturbs one's sleep; inhaling smoke from out-of-control fires is injurious to health." (FAC at ¶ 128 [inside Third Cause of Action Public Nuisance – Civ. Code §§ 3479, 3480 – Encampment Transfers against Los Angeles, COLA, PATH, and USC].)

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"These activities and conditions harm Plaintiff's entire neighborhood or community, and Plaintiff's comfortable enjoyment of his tenancy in particular because they take place immediately in front and in full view of his residence. The squalid and dangerous sidewalk conditions have denied Plaintiff the free passage or use, in the customary manner, of the sidewalk around his residence and his right to quiet enjoyment of his tenancy. The same conditions are also injurious to the health or offensive to the senses, and particularly injurious to Plaintiff's health or offensive to Plaintiff's senses: Seeing groups of individuals hunched over like a zombie horde on the sidewalk is offensive; hearing emergency sirens late at night is injurious to health when it disturbs one's sleep; inhaling smoke from out-of-control fires is injurious to health." (FAC at ¶ 138 [inside Fourth Cause of Action Public Nuisance – Civ. Code §§ 3479, 3480 – Facilitation of Public Drug Markets against COLA, PATH, Citiguard, and USC].)

Leave to amend was not given as to any of these actions. Further, the previous demurrer to the Fourth Cause of Action Public Nuisance – Civ. Code §§ 3479, 3480 – Facilitation of Public Drug Markets against COLA, PATH, Citiguard, and USC) was overruled. Thus, the addition of a new cause of action for Private Nuisance – Civ. Code §§ 3479, 3480 & 3481 – Smoke Intrusion exceeds the scope of the leave to amend granted by the Court.

Regarding the claim for Private Nuisance – Civ. Code §§ 3479, 3480 & 3481 – Noise Intrusion, noise was mentioned one time in the FAC:

Almost every day, and sometimes multiple times per day, emergency vehicles arrive at the Stuart Hotel blaring sirens. The noise intrudes into Plaintiff's residence, interfere with Plaintiff's quiet enjoyment of his residence and/or disturbs his sleep. For example, on December 28, 2023, Plaintiff recorded video of an Inside Safe participant attempting to jump out a window. The incident prompted a large emergency response of many fire engines, ambulances and LAPD cruisers—each one

of them flashing lights and blaring sirens.

(FAC at ¶ 79 [inside Facts - Since

The Arrival Of Inside Safe, Open Air Drug Markets Flourish Around The Stuart Hotel And The Quality Of Life In Plaintiff's Neighborhood Has Deteriorated].)

Noise intrusion was not a cause of action against any party. This new cause of action alone is sufficient to show that Plaintiff's addition of such a claim exceeds the scope of the leave to amend granted by the Court.

The Court need not address Citiguard's individual arguments to each cause of action as the causes of action demurred to exceed the scope of the Court's previous ruling.

The remainder of Plaintiff's arguments do not change the Court's above analysis.

Accordingly, Citiguard's Demurrer is sustained.

B.

Motion to Strike

Citiguard's Motion to Strike is based on the same causes of action and arguments. Accordingly, the Motion to Strike is moot. If and to the extent that Plaintiff contends that failure to comply with the prior ruling and order as to leave to amend is not a proper basis on which to sustain the demurrer, the Court grants the Motion to Strike on that ground.

Conclusion:

Defendant Citiguard, Inc.'s Demurrer is sustained Defendant Citiguard, Inc.'s Motion to Strike is moot, or granted if Plaintiff contends that that failure to comply with the prior ruling and order as to leave to amend is not a proper basis on which to sustain the demurrer, the Court grants the Motion to Strike on that ground.

Plaintiff Christopher Stone is to file a pleading that adheres with the

Court's Order within _____ days. This ruling does not preclude Plaintiff from bringing a motion for leave to file a further amended complaint.

Date: 07/14/2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court